

ASCII MASTER FLOW – PANEL 1/12: Two axes and a third

AXIS 1 DISPLACEMENT -> mining and industry, dams and submergence, protected areas, alienation

-> LOSS: land, forest access, livelihood, habitation

AXIS 2 REHABILITATION -> forest-rights recognition, convergence mission, produce, schooling

-> AXIS 3 CANDIDATE A: livelihood and market integration; title is not income

-> AXIS 3 CANDIDATE B: cultural autonomy; resettlement is not identity or self-government

MUST REMEMBER: Scheduled Tribe and PVTG policy must connect land, forest, habitat,...

ASCI MASTER FLOW – PANEL 2/12: Three rights categories

INDIVIDUAL FOREST RIGHTS -> hold and live in forest land for habitation or self-cultivation

LIMITS -> area actually occupied; ceiling of four hectares per nuclear family

TENURE -> heritable but not transferable or alienable

COMMUNITY RIGHTS -> minor forest produce, grazing, water bodies, biodiversity, custom

COMMUNITY FOREST RESOURCE -> Gram Sabha protects, regenerates, conserves and manages

ASCII MASTER FLOW – PANEL 3/12: Ministry statement card

RECOGNISES -> dependence of forest dwellers for livelihood, habitation, socio-cultural needs

INCLUDES -> habitat rights for particularly vulnerable groups; nomadic seasonal access

ALSO -> community intellectual property and traditional knowledge; developmental land use

WITH THE 2013 LAW -> protects against eviction without rehabilitation and settlement

OBJECTIVES -> undo historical injustice; secure tenure and food security; strengthen conservation

ASCII MASTER FLOW – PANEL 4/12: Claim chain

STEP 1 -> Gram Sabha receives claims, verifies them and recommends

STEP 2 -> Sub-Divisional Level Committee examines and verifies the recommendation

STEP 3 -> District Level Committee is the final adjudicating authority

RULES -> specify timelines and the evidence a claimant must produce

DIAGNOSIS -> name the tier at which recognition actually failed

ASCII MASTER FLOW – PANEL 5/12: Rejection is not eviction

LEGAL POSITION -> rejection does not erase due-process duties

NO AUTOMATIC POWER -> rejection is not authority to evict a claimant

2019 EPISODE -> the eviction direction concerning rejected claims was stayed

PRACTICAL POSITION -> high rejection rates still create real eviction risk

RULE -> state the legal power and the practical risk as two separate facts

ASCII MASTER FLOW – PANEL 6/12: Protected-area conditions

CONDITION 1 -> recognition of rights in the area must first be completed

CONDITION 2 -> a scientific case for modification of rights must be made out

CONDITION 3 -> coexistence must be assessed and found not to be possible

CONDITION 4 -> the Gram Sabha must give free informed consent

CONDITION 5 -> a secure resettlement and livelihood package must be in place

CLOSE DISTINCTION: Scheduled Tribe, PVTG, forest dweller and indigenous people are not...

ASCI MASTER FLOW – PANEL 7/12: Scheduled-Areas welfare powers

SCOPE -> Scheduled Areas notified under the Fifth Schedule only, not all rural areas

CONSULTATION -> mandatory before land acquisition and before resettlement

OWNERSHIP -> minor forest produce vests with the Gram Sabha

REGULATION -> control over money-lending affecting Scheduled Tribes

MARKETS -> management of village markets; institutional design owned by the Polity owner

ASCII MASTER FLOW – PANEL 8/12: Vulnerable-group criteria

CRITERION 1 -> pre-agricultural or low level of technology

CRITERION 2 -> low level of literacy

CRITERION 3 -> declining or stagnant population

CRITERION 4 -> economic backwardness relative to other tribal groups

COUNT -> seventy-five communities officially identified; a sub-category, not all tribes

ASCII MASTER FLOW – PANEL 9/12: Convergence mission card

LAUNCH -> 15 November 2023, Ministry of Tribal Affairs

TARGET -> the seventy-five identified communities across eighteen States and Union Territories

HOUSING AND INFRASTRUCTURE -> rural housing convergence; road, electricity and water

HEALTH AND EDUCATION -> mobile medical units, Anganwadi outreach, schools and hostels

CAUTION -> a sanction or dashboard count is not proof of completed delivery

ASCI MASTER FLOW – PANEL 10/12: Produce to income

COMMUNITY RIGHT -> ownership of minor forest produce under the forest-rights statute
-> VILLAGE ENTERPRISE UNIT: aggregation, processing and packaging at village level
-> PRICE SUPPORT: minimum-support-price arrangement for minor forest produce
-> MARKET LINKAGE through the national tribal-produce marketing agency
LIMIT -> these village units are not universal, so benefits accrue unevenly

ASCII MASTER FLOW – PANEL 11/12: Education and institutions

RESIDENTIAL SCHOOLS -> Class VI to Class XII under the Ministry of Tribal Affairs
NORM -> one school per block with at least fifty per cent Scheduled Tribe population
AND -> at least twenty thousand Scheduled Tribe persons, or as per ministry criteria
COMMISSION -> National Commission for Scheduled Tribes under Article 338A
ROUTING -> composition and mandate detail belong to the Polity commissions owner

ASCII MASTER FLOW – PANEL 12/12: Alienation and authorities

PROHIBITION EXISTS -> State tenancy and land-transfer laws in Fifth Schedule areas

EXAMPLES -> Chotanagpur Tenancy Act; Andhra Pradesh Scheduled Areas Land Transfer Regulation

FAILURE -> informal and illegal transfers persist; enforcement is the weak link

AUTHORITIES -> Samatha on transfer and mining; Niyamgiri on Gram Sabha determination

DIAGNOSIS -> the Xaxa Committee on alienation, displacement and weak self-government

EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Use Gram Sabha, habitat/community forest...